

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:150152/2017

-----X
STEVEN FRANCIS,

AMENDED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER ANTONIO ARROYO, Shield #
8685,

Defendants.
-----X

Plaintiff, Steven Francis, by his attorneys Antin, Ehrlich & Epstein, LLP, as and for his
complaint against defendants, allege as follows:

PARTIES, JURISDICTION and VENUE

1. Defendant, City of New York ("NYC"), is a municipality within the State of New York, which includes New York County. NYC maintains a police department, the New York City Police Department ("NYPD"), which is an agency of the municipality.

2. Upon information and belief, defendant Antonio Arroyo, was at all times a Police Officer with the NYPD believed to have been assigned to the 9th Precinct and whose shield number is 8685. Antonio Arroyo is being sued in both his official and individual capacity.

3. A Notice of Claim was served upon NYC on December 30, 2015, within ninety days of October 8, 2015, the statutory date of accrual. (a copy of same is annexed hereto and made a part hereof)

4. More than thirty days have passed since the Notice of Claim was served and there has been no resolution of the claim.

5. That the plaintiff has duly complied with all statutes and laws applicable to the

defendant, "City", precedent to the making of this claim and bringing this action.

6. The instant action is being commenced within one year and ninety days of the date of accrual.

FACTS GIVING RISE TO THE CAUSES OF ACTION

7. On late October 8, 2015/early on October 9, 2015, at approximately midnight, plaintiff was in front of or across from 201 East 12th Street, County, City and State of New York.

8. At the aforesaid time and place plaintiff was assaulted, battered and falsely arrested by an agent, servant and/or employee of one or more of the defendant(s), including defendant Antonio Arroyo.

9. The plaintiff was then handcuffed, confined and imprisoned by an agent, servant and/or employee of one or more of the defendant(s), including defendant Antonio Arroyo and taken to the 9th precinct, and/or "Central Booking" and/or Criminal Court and/or Mt. Sinai Beth Israel Hospital. (where he underwent otherwise an unnecessary examination and invasive testing)

10. The plaintiff was charged with violating NYS Penal Law §195.05, §110 and §215.40(2). All charges were later dismissed upon the application of the New York County District Attorney's office and the file was sealed

11. Plaintiffs suffered and continues to suffer , inter alia, emotional and psychological injuries as a result of this incident.

FIRST CAUSE OF ACTION (State: Unlawful Search and Seizure)

12. Paragraphs 1 through 11 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

13. The assault on the plaintiff was without lawful process or other justifiable reason and was in violation of the State constitution and established common law.

14. By reason thereof, defendants caused plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

15. Because the defendant Abtonio Arroyo acted within the scope of his duties as a member of the defendant NYPD, defendant, CITY is also liable under this claim based on a theory of *respondeat superior*.

SECOND CAUSE OF ACTION
(State: False Arrest)

16. Paragraphs 1 through 15 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

17. Plaintiff was detained and arrested without his consent and without probable cause.

18. By reason thereof, defendant Antonio Arroyo caused plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

19. Because defendants Antonio Arroyo acted within the scope of his duties as a member of the NYPD, defendant, CITY is also liable under this claim based on a theory of *respondeat superior*.

THIRD CAUSE OF ACTION
(§1983: False Arrest)

20. Paragraphs 1 through 19 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

21. Plaintiff was detained and arrested without his consent and without probable

cause in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

22. By reason thereof, defendant Antonio Arroyo caused plaintiff to suffer emotional distress, mental anguish and the loss of their constitutional rights.

FOURTH CAUSE OF ACTION
(State: Excessive Force)

23. Paragraphs 1 through 22 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

24. The assault and battery on the plaintiff constituted the use of unnecessary and excessive force in the performance of the defendant's police duties and under color of law.

25. By reason thereof, defendant Antonio Arroyo caused plaintiff to suffer emotional distress, mental anguish and the loss of their constitutional rights.

26. Because defendant Antonio Arroyo acted within the scope of his duties as a member of the NYPD, defendant, CITY is also liable under this claim based on a theory of *respondeat superior*.

FIFTH CAUSE OF ACTION
(§1983: Excessive Force)

27. Paragraphs 1 through 26 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

28. By assaulting and battering plaintiff, the defendant(s) used unnecessary and excessive force in the performance of their police duties and under color of law.

29. By reason thereof, defendant Antonio Arroyo caused plaintiff to suffer emotional distress, mental anguish and the loss of his constitutional rights.

30. Because the Antonio Arroyo acted within the scope of his duties as members of

the NYPD, defendant, CITY is also liable under this claim based on a theory of *respondeat superior*.

SIXTH CAUSE OF ACTION
(§1983: Monell Claim)

31. Paragraphs 1 through 30 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

32. NYC and the NYPD had a duty to competently and sufficiently train the individual defendant in the protection of the constitutional rights of plaintiff under the Fourteenth Amendment of the United States Constitution and Article 1, §§ 11 and 12 of the Constitution of the State of New York.

33. In addition, defendants, NYC and the NYPD had the duty to competently and sufficiently train the individual defendant officer to conform their conduct to a standard, established by law, for the protection of citizens, such as plaintiff, against unreasonable risk of harm by conducting themselves in such a manner as not to intentionally, wantonly, and/or negligently inflict injuries to citizens, such as the plaintiff herein.

34. Defendants NYC and the NYPD, its agents, servants and employees, were negligent in failing to afford the individual defendant officer the proper and special training, supervision and discipline necessary for the entry into the private dwellings of the citizenry, such that the conduct of the individual defendant officer herein would not occur. Specifically, defendants, NYC and the NYPD failed: to properly train officers in the proper methods of investigation to determine the whereabouts of an individual being sought by the police.

35. By reason thereof, defendants violated 42 U.S.C. §1983 and caused plaintiffs to

suffer emotional distress, mental anguish and the loss of his constitutional rights.

AS AND FOR A SEVENTH CAUSE OF ACTION
Malicious Prosecution

36. Paragraphs 1 through 35 are incorporated herein pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

37. Defendants, their officers, agents, servants and/or employees, stopped, seized and detained the plaintiff, and made complaints to the District Attorney of New York County so as to cause the latter to prosecute the plaintiff, with the conscious objective of causing the plaintiff's arrest, detention and imprisonment as well as charges being filed against the plaintiff, through the intentional use of false, misleading and unreliable evidence and testimony, through deliberate indifference to whether the evidence and testimony was false, misleading or unreliable, and/or through careless, reckless, grossly negligent or negligent investigative conduct.

38. As a result of the aforementioned conduct, and the complaints made to the New York County District Attorney based on false, misleading and unreliable testimony and/or evidence, defendants, their agents, servants, officers and/or employees were the cause of the plaintiff's wrongful detention, booking, prosecution and resultant damages.

39. But for the false, misleading and unreliable evidence and testimony provided to the New York County District Attorney, and the other acts of misconduct by defendants as set forth above, the plaintiff would not have been detained, charged, prosecuted or imprisoned and would not have suffered her losses and damages.

40. By virtue of the foregoing, defendants, their officers, agents, servants and/or employees initiated, or caused the initiation and/or continuation of, criminal proceedings against the plaintiff.

41. The criminal proceedings instituted and contained against the plaintiff was wholly without legal or probable cause, were instituted and continued with malice, and were terminated in favor of the plaintiff.

42. That as a result of the foregoing, plaintiff, Steven Francis, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

AS AND FOR A EIGHTH CAUSE OF ACTION
Abuse of Process

43. Plaintiff repeats, reiterates and re-alleges each and every allegations contained in paragraphs "1" - "42 " above as if the same were more fully re-alleged herein at length.

44. Defendants, their agents, servants, officers and/or employees, acting within the scope of their employment, by virtue of the foregoing conduct did commit abuse of process by activating regularly issued process, to wit, the filing of criminal complaints against the plaintiff.

45. Defendants, their agents, servants, officers and/or employees, sought detriment to the plaintiff without excuse or justification and which was outside the legitimate ends of the criminal process.

46. That as a result of the foregoing, plaintiff, Steven Francis, has been damaged in a sum that exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction plus attorneys' fees.

WHEREFORE, the plaintiff demands judgment against defendants as follows:

- i) On the first cause of action, actual and punitive damages in an amount to be determined at trial;
- ii) On the second cause of action, actual and punitive damages in an amount to be determined at trial;
- iii) On the third cause of action, actual and punitive damages in an amount to be determined at trial;
- iv) On the fourth cause of action, actual and punitive damages in an amount to be determined at trial;
- v) On the fifth cause of action, actual and punitive damages in an amount to be determined at trial;
- vi) On the sixth cause of action, actual and punitive damages in an amount to be determined at trial;
- vii) On the seventh cause of action, actual and punitive damages in an amount to be determined at trial;
- viii) On the eighth cause of action, actual and punitive damages in an amount to be determined at trial;
- ix) Statutory attorney's fees and disbursements pursuant to 42 U.S.C. §1988, and costs of this action;
- x) Such other relief as the Court deems just and proper.

Dated: New York, New York
January 6, 2017

Antin, Ehrlich & Epstein, LLP
Attorneys for Plaintiff
49 West 37th Street - 7th Fl.
New York, New York 10018
(212) 221-5999

By: _____

Scott W. Epstein

In the Matter of the Claim of
Steven Francis
-against-
The City Of New York,
The New York City Police Department
And Police Officer Antonio Arroyo, Shield # 8685

TO: The City of New York, The New York City Police Department, 100 Church Street, New York, New York 10007

1. The name and post-office address of each Claimant and Claimant's attorney is:

Steven Francis (Arrest # M15675986)
450 East 169th Street, Apt. 4A
Bronx, New York 10456

Antin, Ehrlich & Epstein, LLP
49 West 37th Street, 7th Floor
New York, NY 10018
(212) 221-5999

2. The nature of the claims:

Assault and battery, negligent hiring, training, supervision and/or retention of police officers, including Police Officer Antonio Arroyo, Shield # 8685, respondent superior, false arrest; false imprisonment; violation of Claimant's civil and constitutional rights; monetary damage; intentional infliction of emotional distress; negligent infliction of emotional distress; prima facie tort; excessive and/or brutal force; defamation, libel and slander; as well as false and malicious prosecution; all due to the intentional acts and/or negligence of the Respondents, their agents, servants and/or employees herein

3. The time when, the place where and the manner in which the claim arose:

The claim arose late on October 8, 2015/early on October 9, 2015 at approximately midnight when the Claimant was assaulted and falsely arrested in front of or across from 201 East 12th Street, County, City and State of New York. Claimant was falsely arrested by agents, servants and/or employees of the New York City Police Department and was falsely detained, handcuffed, confined and imprisoned by agents, servants, and/or employees of the New York City Police in an RMP and taken to the premises of the 9th Precinct, and/or "Central Booking" facility and/or the premises of the Criminal Court of the City of New York, 100 Centre Street, New York, New York. Claimant's civil rights were further violated, and claimant suffered further injury, humiliation and psychological damage as a result of the false and malicious prosecution pursued by the Respondents, their agents, servants and/or employees. The aforesaid false arrest and/or assault and/or malicious prosecution was without any due cause, reason or provocation on the part of this Claimant. The foregoing incident and Claimant's resulting injuries were caused due to the negligence of these agents, servants and/or employees of the Respondents herein in the operation, management, control and/or performance of their duties in that they wrongfully arrested and imprisoned and maliciously prosecuted the Claimant.

4. The items of damage or injuries claimed are:

The items of damage or injuries claimed are: monetary damages for the intentional and negligent violation of claimant's constitutional and statutory rights, for the intentional and negligent violation of claimant's civil rights, for the infliction of emotional distress on the claimant, for the false arrest of the claimant, for the malicious prosecution of the claimant, for monetary damages for personal injuries with conscious pain and suffering, medical and related expenses sustained by the claimant, along with loss of enjoyment of life all due to the negligence of the respondents, their agents, servants and/or employees herein.

TOTAL AMOUNT CLAIMED ONE MILLION AND 00/100 (\$1,000,000.00) DOLLARS.

ANTIN, EHRLICH & EPSTEIN, LLP

By:

Jeffrey S. Antin
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 221-5999

ATTORNEY'S VERIFICATION

STATE OF NEW YORK

COUNTY OF NEW YORK: ss

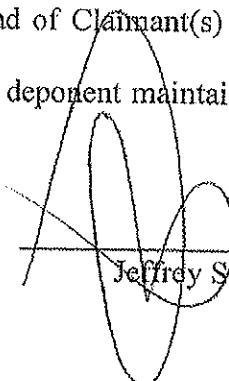
Jeffrey S. Antin, duly sworn, deposes and says:

I am an attorney duly admitted to practice law in the State of New York. I affirm the following under the penalties of perjury:

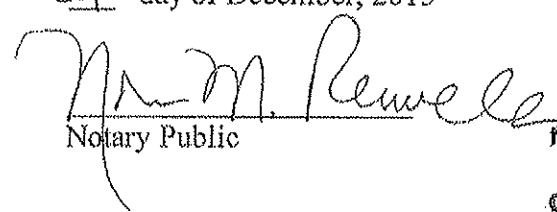
I am a partner in the firm of Antin, Ehrlich & Epstein, LLP, the attorneys of record for Claimants. I have read the annexed NOTICE OF CLAIM and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged on information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon personal knowledge is based upon the following:

Interviews and/or discussions with the Claimants and papers and/or documents in the file.

The reason I make this verification instead of Claimant(s) is because said Claimant(s) reside(s) outside of the county within which your deponent maintains his office for the practice of law.


Jeffrey S. Antin

Sworn to before me on this
21th day of December, 2015


Notary Public

NOREEN M. REVUELTA
Notary Public, State of New York
No. 02RE49434P0
Qualified in Suffolk County
Commission Expires Oct. 24, 2016